SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: W.P. (Crl.) No. 167 of 2012 (YEAR: 2015)

CORAM: J. CHELAMESWAR, R.F. NARIMAN

Shreya Singhal
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Information Technology Act, 2000, Constitution of India
Sections:	Section 66A IT Act, Section 69A IT Act, Article 19(1)(a), Article 19(2)

JUDICIAL HEADNOTE & SUMMARY

Struck down Section 66A of the Information Technology Act, 2000 in its entirety for violating Article 19(1)(a). Held that liberty of thought and expression cannot be suppressed on vague assertions of causing annoyance or inconvenience.

RATIO DECIDENDI

The Court held that: Struck down Section 66A of the Information Technology Act, 2000 in its entirety for violating Article 19(1)(a). Held that liberty of thought and expression cannot be suppressed on vague assertions of causing annoyance or inconvenience. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Shreya Singhal v. Union of India (W.P. (Crl.) No. 167 of 2012) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Information Technology Act, 2000, Constitution of India, particularly Section 66A IT Act, Section 69A IT Act, Article 19(1)(a), Article 19(2). Struck down Section 66A of the Information Technology Act, 2000 in its entirety for violating Article 19(1)(a). Held that liberty of thought and expression cannot be suppressed on vague assertions of causing annoyance or inconvenience.

OPERATIVE ORDER

ORDER: Decided